

26NNCV03152 26NNCV03152

County: los-angeles

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Case Number: 26NNCV03152 Hearing Date: September 16, 2026 Dept: V

Superior Court of California

County of Los Angeles – NORTHEAST District

Department

V

LERON INC.,

Plaintiff,

vs.

CALIFORNIA ROOFLINE INC., YOVEL

TUBUL, and DOES 1 through 50, inclusive,

Defendants.

Case

No.:

26NNCV03152

Hearing

Date:

September

16, 2026

Time:

8:30 a.m.

[Tentative]

Order RE: DEMURRER AND MOTION TO STRIKE PORTIONS OF PLAINTIFF'S
COMPLAINT

MOVING PARTY: Defendants California Roofline,
Inc. and Yovel Tubul

RESPONDING PARTY: Plaintiff Leron Inc.

The Court

considered the moving papers, opposition, and reply filed in connection with the
instant motion.

BACKGROUND

On April 22, 2026,
Plaintiff Leron Inc. ("Plaintiff") brought this action against Defendants
California Roofline Inc. and Yovel Tubul (collectively, "Defendants"), alleging
causes of action for (1) breach of contract, (2) negligence, (3) breach of
implied warranty, and (4) intentional misrepresentations. The causes of action
arise out of an alleged verbal agreement to perform construction services between
the parties.

On July 14, 2026,
Defendants filed the instant demurrer and motion to strike.

On August 28, 2026, the
Court related this matter to Los Angeles Superior Court case, California
Roofline Inc., a California corporation vs. Leron Inc., a California
corporation, et al., case no. 26NNCV01511 (the "First Action"), within the
meaning of California Rules of Court, rule 3.300(a) and deemed the First Action
to be the lead case.

On September 2, 2026,
Plaintiff filed an opposition.

On September 8, 2026,
Defendants filed a reply.

REQUEST FOR JUDICIAL NOTICE

Defendants request that
the Court take judicial notice of the following:

1.
The
Complaint filed by Defendant California Roofline Inc. in the First Action

2.
The
Answer filed by Plaintiff in the First Action on July 14, 2026.

3.
The
Cross-Complaint filed by Plaintiff in the First Action on July 14, 2026.

The Court grants Defendants' requests for
judicial notice pursuant to Evidence Code section 452, subdivision (d).

LEGAL STANDARD

A party may object to a complaint or
cross-complaint; the party may file a demurrer, an answer, or both. (Code of
Civ. Proc., § 430.30.) The demurrer may be filed within 30 days after service
of the complaint or cross-complaint unless extended by stipulation or court
order. (Code of Civ. Proc., § 430.40, subd. (a).)

As a general matter, in a demurrer proceeding, the defects must
be apparent on the face of the pleading or via proper judicial
notice. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968,
994.) "A demurrer tests the pleading alone, and not the evidence or facts
alleged." (*E-Fab, Inc. v. Accountants, Inc. Servs.* (2007) 153
Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the
complaint's properly pleaded or implied factual allegations. (*Id.*)
The only issue a demurrer is concerned with is whether the complaint, as it

stands, states a cause of action. (Hahn v. Mirda (2007)
147 Cal.App.4th 740, 747.)

Before filing a demurrer, the demurring party is required to meet and confer with the party who filed the pleading demurred to for purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (Code Civ. Proc., § 430.41.)

DISCUSSION

A. Meet and Confer

Defendants' counsel sent Plaintiff's counsel a meet and confer letter on June 10, 2026. (Shem-Tov Decl., ¶ 3.) However, the parties were unable to meet and confer before the deadline to file a response to the complaint because Plaintiff's counsel was traveling. (Shem-Tov Decl., ¶ 4.) As of the filing of this demurrer, the parties have not been able to reach an agreement regarding the demurrer and motion to strike. (Shem-Tov Decl., ¶ 6.)

The Court finds that Defendants made a good-faith effort to meet and confer before filing the demurrer. Accordingly, the Court will address the merits of the demurrer. (See Code Civ. Proc., § 430.41, subd. (a)(4).)

B. Demurrer to the Entire Complaint as Uncertain

Defendants demur to Plaintiff's complaint in its entirety as uncertain.

A party may demur to a complaint on the grounds that it is uncertain, ambiguous, or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A complaint must contain "[a] statement of the facts constituting the cause of action, in ordinary and concise language." (Code Civ. Proc., § 425.10, subd. (a)(1).)

Demurrers for uncertainty are disfavored and will be sustained only where the pleading is so incomprehensible that the defendant cannot reasonably respond. (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695, as modified Aug. 13, 2019.) As courts have recognized, a demurrer for uncertainty is strictly construed because ambiguities and lack of specificity can generally be clarified through discovery. (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

Defendants argue the complaint is uncertain because it does not distinguish between the two defendants. Defendants argue that the complaint attempts to overcome this failure through alter ego, agency, and aiding and abetting theories, but the underlying allegations do not support those claims.

Plaintiff argues that the complaint sufficiently apprises Defendants of Plaintiff's claims against them and properly pleads the allegations. (Opp., 7:25-28; 8:1-2.) Plaintiff contends that Defendants are attempting to hold Plaintiff to the standard of proving its allegations, not whether the complaint is properly pled. (Opp., 8:3-4.)

The Court that the complaint adequately apprises Defendants of the nature of the claims asserted against them and the factual basis for those claims. The allegations are sufficiently clear to permit Defendants to understand the claims and formulate a responsive pleading. To the extent Defendants seek additional details pertaining to the alter ego, agency, and aiding and abetting theories, such matters concern the specificity of the allegations rather than the intelligibility of the pleading. A demurrer for uncertainty is not the proper vehicle to obtain evidentiary detail, particularly where the complaint is otherwise understandable and discovery is available to clarify any ambiguities.

Accordingly, the Court
OVERRULES Defendants' demurrer to the complaint on the ground of uncertainty.

C. Demurrer
to the Entire Complaint as Improperly Splitting the Dispute Which Belongs in the First Action

Defendants demur to

Plaintiff's complaint in its entirety on the grounds that it seeks separate prosecution of a dispute that belongs in the First Action and is therefore barred.

"Except as otherwise provided by statute, if a party against whom a complaint has been filed and served fails to allege in a cross-complaint any related cause of action which (at the time of serving his answer to the complaint) he has against the plaintiff, such party may not thereafter in any other action assert against the plaintiff the related cause of action not pleaded." (Code Civ. Proc., § 426.30, subd. (a).) A related cause of action is "a cause of action which arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause of action which the plaintiff alleges in his complaint." (Code Civ. Proc., § 426.10, subd. (c).)

"The compulsory cross-complaint statute is designed to prevent 'piecemeal litigation.'" (Align Technology, Inc. v. Tran (2009) 179 Cal.App.4th 949, 959.) "[T]he compulsory cross-complaint statute ... must be liberally construed to effectuate its purpose." (Ibid.) "The related cause of action must be one that was in existence at the time of service of the answer; otherwise, the failure to assert it in the prior litigation is not a bar under the statute." (Id. at p. 960 [internal citations omitted].) A plaintiff is generally prevented from enforcing a single cause of action in separate, concurrent lawsuits against the same party. (Colebrook v. CIT Bank, N.A. (2021) 64 Cal.App.5th 259, 263.)

Defendants argue that the compulsory cross-complaint statute is implicated here because Plaintiff asserts the same claims in its cross-complaint in the First Action. Defendants argue that the First Action already covers the underlying dispute and asserting identical claims in a separate, later-filed action is forbidden by Code of Civil Procedure section 426.30.

The Court agrees. The complaint in this action and the cross-complaint in the First Action assert the same causes of action. The allegations in Plaintiff's cross-complaint in the First Action are the same paragraph-by-paragraph allegations that Plaintiff pleaded in the complaint in this action. The First Action is ongoing and has not reached a final determination on the merits. Therefore, the Court finds that

the instant action arises out of the same transaction, occurrence, or series of transactions or occurrences and Plaintiff may not assert the same causes of action against Defendants in a separate action.

Thus, the Court SUSTAINS

Defendants' demurrer to the entirety of Plaintiff's complaint. Accordingly, the Court finds that Defendants' motion to strike is moot.

CONCLUSION

Based on the foregoing, the Court SUSTAINS Defendants California Roofline, Inc. and Yovel Tubul's demurrer to Plaintiff Leron Inc.'s complaint in its entirety.

Considering the Court's sustaining of Defendants' demurrer, the Court finds that Defendants' motion to strike is moot.

Moving party is ordered to give notice of this ruling.

IT IS SO ORDERED.

DATED: September 16, 2026

Sarah
J. Heidel

Judge
of the Superior Court